

Complaints Policy - Cozy Corner Care Limited

Introduction

This policy sets out the values, principles and procedures, which underpin Cozy Corner Care Limited's approach to handling complaints to comply with the Health and Social Care Act 2008 (Regulated Activities) Regulations 2014, Regulation 16: Receiving and Acting on Complaints and Regulation 20: Duty of Candour

It also shows how Cozy Corner Care Limited is meeting the Quality Statement, "Listening to and Involving People" which the CQC is using in future for assessment purposes.

"We make it easy for people to share feedback and ideas or raise complaints about their care, treatment and support. We involve them in decisions about their care and tell them what's changed as a result."

Regulation 16 requires care providers to have an effective system to identify, receive, handle and respond appropriately to complaints and comments made by people who use the service, or persons acting on their behalf, and others involved with the service.

Regulation 16 is one of the fundamental standards with which providers must comply to meet their registration requirements. It states the following.

1. Any complaint received must be investigated and necessary, proportionate action must be taken in response to any failure identified by the complaint or investigation.
2. The registered manager must establish and operate effectively an accessible system for identifying, receiving, recording, handling and responding to complaints by people who use the service and other persons in relation to the carrying on of the regulated activity.
3. The registered person must provide to the Commission, when requested to do so and by no later than 28 days beginning on the day after receipt of the request, a summary of:
 - a. complaints made under such complaints system
 - b. responses made by the registered person to such complaints and any further correspondence with the complainants in relation to such complaints
 - c. any other relevant information in relation to such complaints as the Commission may request.

To be compliant with this regulation, Cozy Corner Care Limited will:

- bring the complaints system to the attention of people who use the service and people acting on their behalf in a suitable manner and format. This is provided to new clients

and their representatives at the start of a package of care and will be provided in accessible formats in line with recorded communication needs

- facilitate the making of complaints when one is being made
- acknowledge and investigate all verbal and written complaints and (where relevant), work with other services where the complaint is of a joint nature to address the issues raised
- ensure that people who use the service have access to and the help of an independent advocacy service, which they might need to make a complaint where they lack the capacity or means to make the complaint without such assistance; an advocate can assist the person at all stages in the complaints process (Cozy Corner Care Limited has a separate policy on Advocacy).

Where appropriate, Cozy Corner Care Limited will also refer users to the leaflet published by the Care Quality Commission (CQC), *How to Complain About a Health or Social Care Service*.

This policy should be read and used in relation to other policies on:

- Responding to the Experiences of People Who Use the Service
- Duty of Candour Policy
- Quality Assurance and Improvement
- Escalation
- Duty of Candour
- Safeguarding policies.
- Accessible Information Policies

Policy Statement

Cozy Corner Care Limited works on the principle that if a person who uses the service or anyone who acts in their best interests wishes to make a complaint or register a concern they should find it easy to do so.

We provide copies of our complaints policies to people in accessible formats in line with their communication needs

We also provide this policy to people's representatives and family members where appropriate.

We will support the use of advocates in the complaints process, especially with regard to people who may lack the capacity or means to make the complaint without such assistance

Cozy Corner Care Limited welcomes complaints and looks on them as a opportunities to learn, adapt, improve and provide better services. This policy ensures that complaints are dealt with properly and that all complaints or comments by individuals and their relatives and carers are taken seriously.

The policy is not designed to apportion blame, to consider the possibility of negligence or to provide compensation. It is not the same as the disciplinary policy. However, Cozy Corner Care Limited understands that failure to listen to or acknowledge complaints could lead to an aggravation of problems, dissatisfaction of people who use the service and possible litigation.

Cozy Corner Care Limited supports the principle that most complaints, if dealt with early, openly and honestly, can be sorted at a local level, ie between the complainant and Cozy Corner Care Limited. If this fails due to the complainant being dissatisfied with the result, Cozy Corner Care Limited respects the right of the complainant to take the complaint to the next stage by seeking a review with the relevant reviewing body of how the complaint was addressed.

The aim is always to make sure that the complaints procedure is properly and effectively implemented and that individuals feel confident that their complaints and worries are listened to and acted upon promptly and fairly.

Cozy Corner Care Limited understands that it must always be open and transparent with the people receiving its care and those closely involved in their care. This is reflected in our Statement of Purpose and our approach to leadership and management and in all of the service's relationships with its users and others involved in their care and treatment.

Cozy Corner Care Limited understands that it owes a duty of candour particularly when things go wrong with people's care and treatment. Thus it recognises that whenever an incident has occurred, which must be notified to the Care Quality Commission (CQC)

Policy Issues

Cozy Corner Care Limited recognises that where it is providing a local authority or health authority commissioned service it is the commissioner which becomes accountable for any potential faults in the provision of the service. It is also the commissioning authority which will be responsible for ensuring that Cozy Corner Care Limited corrects any faults found from the investigation of the complaint and could do this through its quality monitoring processes.

When it receives a written complaint about a local authority commissioned service it is providing, Cozy Corner Care Limited will notify the commissioning authority of the complaint, how it proposes investigating it and of the outcomes. This ensures transparency, good communication and partnership working in the complaints handling process.

Cozy Corner Care Limited recognises that a complainant who is not prepared to have the investigation conducted by Cozy Corner Care Limited or its parent organisation or is

dissatisfied with the response to the complaint can escalate the complaint to the responsible commissioning authority.

Cozy Corner Care Limited will also inform people who are paying for their own care independently without local authority involvement of their legal right to escalate an unresolved complaint directly to the Local Government Social Care Ombudsman.

If the complaint involves safeguarding issues requiring an alert to the local safeguarding authority, Cozy Corner Care Limited will follow the safeguarding procedures, carrying out any internal investigation in line with any plan agreed with the safeguarding staff (with information shared with the CQC).

Principles of Complaints Handling

1. In Cozy Corner Care Limited, people who use it, their representatives and carers are always made aware of how to complain from the onset of their using the service, We do this by having a complaints notice displayed prominently in public areas, having copies of the complaints procedure or complaints notice included in the information given to people who use the service, and having the procedure available in alternative formats in line with users' communication needs).
2. People who use the service, their representatives and carers are always made aware that Cozy Corner Care Limited provides easy-to-use opportunities for them to register their complaints.
3. A named person is always responsible for the administration of the procedure.
4. Every written complaint is acknowledged with the acknowledgment sent within two working days.
5. Investigations into written complaints are held within 28 days.
6. The complainant will be informed of any reasons for failing to complete the investigation within the 28 days.
7. The findings of the investigation will be given to the complainant in writing by Cozy Corner Care Limited immediately after completion.
8. Complaints are dealt with promptly, fairly and sensitively with due regard to the upset and worry that they can cause to people who use the service and those against whom the complaint has been made.
9. Cozy Corner Care Limited recognises national guidance on complaints' handling, which uses a three-stage (two stages for some self-funding people) model of:
 - a. local resolution
 - b. complaints review

- c. independent external adjudication by Local Government and Social Care Ombudsman (LGSCO), Health Service Ombudsman or through the Independent Healthcare Advisory Services (IHAS).

10. The person to whom complaints should be made is

Thu Aung- Registered Manager

Telephone: 02039243451 or

E-mail: thu.aung@cozycornercare.com

The Complaints Procedure

Stage one: local resolution

Cozy Corner Care Limited works on the basis that wherever possible, complaints are best dealt with directly with the people who use the service by its staff and management, who will arrange for the appropriate enquiries to be made in line with the nature of the complaint. This can involve using an independent investigator as appropriate or if the complaint raises a safeguarding matter a referral to the local safeguarding adults authority.

All complaint will be formally recognised and acknowledged within 2 working days.

Cozy Corner Care Limited will launch an investigation and aims within 28 days to provide a full explanation to the complainant, either in writing or by arranging a meeting with the individuals concerned.

If the issues are too complex to complete the investigation within 28 days, Cozy Corner Care Limited will issue an interim report of the progress being made with the complaint investigation, stating reasons for any delay and an estimated timescale for completion.

Stage two: complaints review

In line with national guidance, Cozy Corner Care Limited then recognises that if the complaint is still not resolved, the complainant has a right to take their complaint to the body responsible for the commissioning of the service, eg local authority and/or health service (again depending on the nature of the complaint and type of service involved). A self-funding person whose care and support has no local authority involvement is entitled to go directly to the LGSCO for resolution.

Stage three: independent external adjudication

If complainants are still dissatisfied with the management and outcome of their complaint, Cozy Corner Care Limited is aware that they can refer the matter to the LGSCO/Health Service Ombudsman in respect of some private healthcare providers through the IHAS for external independent adjudication.

Role of the Care Quality Commission

Cozy Corner Care Limited makes its users aware that the Care Quality Commission (CQC) does not investigate any complaint directly, but it welcomes hearing about any concerns. It accordingly provides users with information about how to contact the CQC by referring them to the CQC's leaflet *How to Complain About a Health or Social Care Service* (July 2013) (available on the CQC website).

Cozy Corner Care Limited also sends to the CQC any information about complaints requested or required as part of the CQC's compliance reviewing policy.

Safeguarding issues

In the event of the complaint involving alleged abuse or a suspicion that abuse has occurred, Cozy Corner Care Limited refers the matter immediately to the local safeguarding adults' authority which will usually, following an initial assessment, call a meeting to decide on the actions to be taken next. This could entail further enquiries into any allegation by a member of the Safeguarding Authority team.

Cozy Corner Care Limited will also notify the CQC under the (revised) Care Quality Commission (Registration) Regulations 2009, Regulation 18(e) Notification of Other Incidents of "any abuse or allegation of abuse in relation to a service user".

Processes for complaints about the Registered Manager

If the complaint concerns the conduct or performance of the registered manager, who would otherwise be responsible for handling and investigating the complaint, the nominated individual, will become responsible for the complaints handling process.

The nominated individual will investigate the complaint in line with the complaints procedure, which could include arranging for the complaint to be investigated by a competent independent person or body. This could be the local authority if the commissioner of the service subject to the complaint about the manager.

If a privately funded service, the nominated individual as the representative of Cozy Corner Care Limited will, if unable to achieve local resolution, recommend that the complainant escalates the matter to the Local Government Social Care Ombudsman.

Contact details for raising a complaint to The Nominated Individual are as follows:

Nominated Individual- Angela Kimani

Tel: 07752020331

E-mail: angela@cozycornercare.com

Verbal Complaints

Cozy Corner Care Limited adopts the following procedures for responding to complaints and concerns made verbally to care staff in the course of their providing care or to managers to whom the matter has been referred or escalated.

1. Cozy Corner Care Limited expects its staff to treat all verbal concerns and complaints, no matter how seemingly unimportant, seriously and to acknowledge, report and record them.
2. If a person expresses a concern or complaint to their care worker while receiving care, the care worker should agree to address the matter immediately, resolve it if possible and apologise as appropriate.
3. If the care worker cannot address the person's complaint immediately, they should say they will refer the matter to their manager without delay.
4. Care staff should always be professional, remaining calm and respectful, polite, courteous and sympathetic to a complainant. There is nothing to be gained by their being defensive or aggressive. They should avoid making excuses or blaming other staff.
5. After talking the problem through, the member of staff or manager responding to the complaint will suggest a course of action to resolve it. If this course of action is acceptable, then the member of staff will clarify the agreement with the complainant and agree a way in which the results of the complaint will be communicated to the complainant (ie through another meeting or by letter).
6. If the suggested plan of action is not acceptable to the complainant then the member of staff or manager will ask the complainant to put their complaint in writing and give them a copy of Cozy Corner Care Limited's complaints procedure to enable them to do this.
7. The care staff member receiving the initial complaint in addition to any reporting should always record the matter on the person's care records and in Cozy Corner Care Limited's concerns and complaints book or log.
8. The record should include the nature of the complaint and how it arose, how the staff member receiving the complaint responded and how they followed it up.
9. If a third party makes the complaint directly to a care worker, for example a relative or friend on behalf of the person who uses the service, the care worker should respond in the same professional manner as described above.

10. If the complainant has acting power of attorney for the health and welfare for the person receiving care they might respond directly as if it was the person receiving care making the complaint.
11. Otherwise, it is less likely that they can deal with the complaint directly and will need to refer the matter to their manager. The care staff receiving the complaint or the manager to whom it has been referred, must then always check with the third party the nature of the complaint in relation to the care and treatment that they are providing to the person receiving their care and how it is affecting them.
12. If the complaint appears to be valid in that respect, the care worker or manager, whoever is responding, might suggest that as a first step they discuss the matter directly with the person receiving their care and go on from there to resolve the matter with the person's consent.
13. Alternatively, they might suggest that the third-party complainant speaks to the person receiving care to see if they have the same concerns which can then be addressed by the person receiving care or jointly.
14. They might also suggest, depending on the nature of the concern or complaint. That the third party raises the matter directly with Cozy Corner Care Limited or put in a written complaint.
15. Care service staff must not disclose to a third-party complainant information that is confidential to the care and treatment of the person receiving care without the person's valid consent.

Written Complaints

Cozy Corner Care Limited adopts the following procedures for responding to written complaints, which might be made by letter or on a form which Cozy Corner Care Limited makes available.

Preliminary steps

1. When Cozy Corner Care Limited receives a written complaint, it passes it to the registered manager who records it in the complaints book and sends an acknowledgement letter which describes the procedures they will follow. Cozy Corner Care Limited will send the acknowledgment letter within two working days of receipt.
2. The designated person, (the registered manager) is responsible for dealing with the complaint throughout the complaints handling process, including for any investigations to be carried out by an independent person, who will report to the registered manager. Unless the complaint is about the Registered Manager in which case the Nominated Individual will deal with the complaint through this process.
3. If necessary, the designated person or a person carrying out the investigation into the complaint will obtain further information from the complainant. If the complaint is not

made by the person who uses the service but by a third party, the designated person will seek the consent of the person receiving care to proceed with the complaint as a valid complaint related to their care and treatment.

4. Cozy Corner Care Limited reserves the legal right to seek legal advice if the nature of the complaint raises questions of law. Cozy Corner Care Limited recognises that this is likely to delay the completion of the investigation and will inform the complainant of this possibility. Cozy Corner Care Limited will continue to keep the complainant informed of the progress of the legal intervention.

Investigation of a complaint (other than safeguarding)

1. Immediately on receipt of a written complaint, Cozy Corner Care Limited will launch an investigation and aims within 28 days to provide a full explanation to the complainant, either in writing or by arranging a meeting with the individuals concerned.
2. If the issues are too complex to complete the investigation within 28 days, Cozy Corner Care Limited will issue an interim report of the progress being made with the complaint investigation, stating reasons for any delay and an estimated timescale for completion.

Meetings

1. At any meetings to discuss the complaint, the complainant might wish to bring a friend or relative or have an advocate to represent their views, which will be conducted openly, transparently and fully recorded with records agreed by all parties.
2. Once an outcome is reached, Cozy Corner Care Limited will arrange a special meeting which could be face to face or remote to discuss the findings and the measures it proposes to resolve the complaint.
3. Cozy Corner Care Limited, through its designated person will provide a detailed explanation of the results of the investigation, an apology for any possible distress caused and any remedial measures it proposes to take or might have already taken.
4. Cozy Corner Care Limited views such a meeting as an opportunity to show the complainant that it has taken the complaint seriously and has thoroughly investigated it.

Duty of candour

Cozy Corner Care Limited understands that it owes a duty of candour particularly when things go wrong with people's care and treatment. Thus it recognises that whenever an incident has occurred, which must be notified to the Care Quality Commission (CQC) (under Regulation 18 described above), it must also carry out the following actions.

The registered person, registered manager or a suitable person in authority acting on behalf of the registered person or registered provider will (in addition to notifying the CQC):

- be open with the person receiving care and other relevant persons about the incident
- provide suitable support to the and others affected by the incident
- explain directly and in person to the person and/or their representatives exactly what has happened
- apologise, for example express sorrow and regret for what has happened
- say what is being done to investigate and learn the lessons from what has happened and further actions that might be taken
- undertake to put in writing what has happened and the apology
- keep full records of the incident, including all associated correspondence and the actions that have been taken to carry out the duty of candour with the person receiving care and/or representatives.

Where the person has given consent to their care and support the above actions will be directed at them personally and to others with their agreement. Where the person has been unable to give their consent to their care because of mental incapacity the actions will be followed through communication with their lawful representatives with the expectation that the person will be involved as much as possible.

Cozy Corner Care Limited understands that the incidents to which a specific duty of candour is owed (as opposed to the general duty to act openly and transparently) are those described in the duty of candour Regulation 20.9, ie unintended or unexpected incidents that might occur in the delivery of the care service that: “in the reasonable opinion of a health care professional

- a. appears to have resulted in:
 - i. the death of the person, where the death relates directly to the incident rather than to the natural course of their illness or underlying condition
 - ii. an impairment of the sensory, motor or intellectual functions of the person which has lasted, or is likely to last, for a continuous period of at least 28 days
 - iii. changes to the structure of the person’s body
 - iv. the person experiencing prolonged pain or prolonged psychological harm
 - v. the shortening of the life expectancy of the person
- b. requires treatment by a health care professional in order to prevent:
 - i. the death of the person receiving care

- ii. any injury to the person which, if left untreated, would lead to one or more of the outcomes” described in (a) above.

Cozy Corner care Limited has a separate and full policy on Duty of Candour that should be read in line with this policy.

GDPR and Data Protection Act 2018

Cozy Corner Care Limited recognises its responsibilities under the UK General Data Protection Regulation (UK GDPR) and the Data Protection Act 2018 in relation to the handling of personal data obtained during the complaints process.

All personal data relating to complaints, including information about people who use the service, their representatives, staff members, and any other individuals involved, will be handled lawfully, fairly and transparently.

Lawful Basis for Processing

Information collected as part of a complaint will be processed under the lawful bases of:

- compliance with a legal obligation (including regulatory requirements under the Health and Social Care Act 2008 and Care Quality Commission regulations), and
- the performance of tasks carried out in the public interest or in the legitimate interests of Cozy Corner Care Limited in providing safe, effective and regulated care services.

Where special category data is processed (for example, health information), this will be done in accordance with the additional safeguards required by law.

Confidentiality and Information Sharing

Cozy Corner Care Limited will:

- only collect information that is necessary to investigate and respond to the complaint
- ensure that access to complaint records is restricted to authorised staff who have a legitimate need to know
- share information with external bodies (such as commissioners, safeguarding authorities, the Care Quality Commission, or the Local Government and Social Care Ombudsman) only where this is lawful, necessary and proportionate

- Information will not be disclosed to third parties without appropriate consent unless there is a legal or safeguarding requirement to do so.

Accuracy, Retention and Security

All complaint records will be:

- accurate and kept up to date
- stored securely, whether held electronically or in paper form
- retained in line with Cozy Corner Care Limited's data retention schedule and legal requirements

Once retention periods expire, complaint records will be securely disposed of.

Rights of Individuals

Individuals have rights under data protection legislation, including the right to:

- access their personal data
- request correction of inaccurate information
- request restriction of processing where applicable

Requests relating to personal data held within complaint records will be handled in accordance with Cozy Corner Care Limited's Data Protection and Subject Access Request procedures.

Data Breaches

Any actual or suspected data breach relating to complaint information will be managed in line with Cozy Corner Care Limited's Data Protection and Information Security policies. Where required, breaches will be reported to the Information Commissioner's Office (ICO) and affected individuals in accordance with legal requirements.

Follow-up action

1. Cozy Corner Care Limited will provide a written report to the complainant confirming the results of the investigation and summarising the discussions held.
2. The report will explain how the complainant may escalate the complaint if they are not satisfied with the conduct of the investigation or its outcome.
3. The designated person or complaints handler will maintain a full and accurate record of the complaint, the investigation undertaken, and the outcomes achieved.
4. Cozy Corner Care Limited will ensure that any remedial measures agreed because of the complaint are fully implemented within agreed timescales and are subject to monitoring, audit and review.
5. Cozy Corner Care Limited will ensure that copies of all correspondence relating to a complaint are securely stored alongside the original complaint and a comprehensive complaints log, detailing each stage of the complaints process, actions taken, and any learning identified.
6. All complaint records and personal data will be processed, stored and retained in accordance with the UK General Data Protection Regulation (UK GDPR) and the Data Protection Act 2018, ensuring confidentiality, data security and lawful handling at all times.
7. The management team will review all complaints to identify learning opportunities and will regularly review the complaints procedure to ensure it remains effective, up to date and legally compliant.

Cozy Corner Care Limited reviews all complaints as part of its management meetings. Leaders undertake a review of lessons learned and record any actions taken to reduce the risk of recurrence.

Learning actions arising from complaints are documented within the service's development plans and shared with relevant staff and stakeholders to support continuous improvement.

Training

Cozy Corner Care Limited expects its staff to respond correctly to complaints of any kind and gives complaints training a high priority.

It includes complaints policy training in the induction training for all new staff and updates it in respect of any changes in its policy and procedures and in the light of experience of addressing complaints.

Cozy Corner Care Limited arranges relevant training at the appropriate level for staff responsible for complaints handling and management.

Review

Signed Person Responsible for this policy: Thu Aung - Registered Manager

Date: 22/12/2025

Policy review date: 22/12/2026
